STEPHEN LEONARD NYAKA
versus
ORTONS DRAFT PROPERTIES LIMITED
and
EAST RIVER INVESTMENTS (PVT) LTD
and
REGISTRAR OF DEEDS
and
BETTY ZANZA
and
JOSEPH ZANZA

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 10 February 2026

Opposed Application - Preliminary Points

Tundu, for Applicant
No Appearance for 1st And 2nd Respondents
T Sibanda, for the 4th And 5th Respondents

CHITAPI J: The parties in this matter are as set out in the heading above. The applicant is a male adult of Harare. The first and second respondents are body corporates entitled to sue and be sued in terms of the Law of Zimbabwe. The third respondent cited N.O is a public officer who in terms of The Deeds Registries Act [*Chapter 20:05*] *inter alia* registers deeds of title. In this ruling focus is on how the third respondent participates in applications involving disputes pertaining to acts carried out in the Deeds Registry. The fourth and fifth respondent are interested partied as shall be shown.

The applicant in this application and in the main seeks an order of cancellation of Deed of Transfer No 974/10 registered in favour of the first respondent and seeks the revival of Deed of Transfer No 3857/83 in his name. The property which was conveyed under these deeds of transfer is stand 1018 Malbereign Township. The applicant alleged that he surrendered the Deed of transfer in his name to the first respondent to secure a loan advanced to him as security. The first respondent allegedly and fraudulently transferred title to the

property into its name. The first respondent in turn sold the property to the second respondent. The fourth and fifth respondents claim to have in turn also purchased the property from the second respondent. The main issue is whether or not title to the property should be restored to the applicant.

At the hearing of this application on 2 July 2025 counsel for the fourth and fifth respondents raised a *point in limine* from the bar. I directed that the point should be formally raised and gave directions thereto. Counsel complied. The point *in limine* raised concerns the interpretation of s 79 of the Deeds Registries Act. The fourth and fifth respondents contend that in terms of the interpretation to be placed thereon, this application ought to have been served on the third respondent before its filing. It is contended that the applicant did not give prior notice of this application to the third respondent before filing it. The applicant contends otherwise that it is proper to give notice prior to hearing by service thereof.

Section 79 of the Deeds Registries Act reads as follows:

> " **79 Notice to registrar of application to court.**
>
> Before any application is made to the court for authority or an order involving the performance of any act in a deeds registry the applicant shall give the registrar concerned reasonable notice before the hearing of such application and such registrar may submit to the court such report thereon as he may deem desirable to make"

The applicant served this application on the third respondent on 18 November 2024 after it was filed on 5 July 2024. The parties' responded to the application and all necessary papers were filed. The application was set down for hearing.

It is common cause that all parties served were herein with the application prior to the hearing. The third respondent did not file any response to the application. The non-filing of a response by the third respondent implies that he/she did not consider is necessary to file a report on the matter.

The objection of the fourth and fifth respondents is set out in para(s) 2-5 of their notice and grounds of objection which are convenient to repeat. They read thus;

> "2 Neither the founding affidavit nor the supporting documents presented by the applicant confirm any proof that notice was given to the third respondent prior to making this application before this court.
>
> 3. A reading of s 79 show (sic) that the requirement to give notice is a *sine quo* non for an application of this nature to be properly before the court. Without notice, this Application is

rendered not only premature but a nullity for non-compliance with mandatory statutory provisions. It is a direct contravention of the peremptory provisions of the Act.

4. The requirement to give notice to the third respondent being are that percolates to the root of the matter and being potentially dispositive of this motion falls within the ambit of such statutory provisions which this court has no power to condone.

5. Thus, non-compliance thereof has renders (sic) the Application fatally defective and warranting dismissal"

The applicant responded that is notified the third respondent of this application by service of the application prior to hearing after filing it. He averred that the purpose of serving the application is to inform the Registrar of any potential impact which the application may have on the registry functions. The applicant averred that he complied with the provisions of s 79 by serving the Registrar as he did.

The provisions of s 79 are quite clear. They require that prior to the making of an application to court for an order involving the performances of any act in a deeds registry the applicant should give reasonable notice before the hearing to the Registrar. The making of an application and the filing of an application are different processes with one preceding the other. An applicant files as in this case a court application with or in the Registry where the application is received and processed. The application is only set down or referred to the court or judge when all motions required to be done are complied with. On the date of set down be is the matter is opposed or listed on the unopposed roll, the applicant must then make the application before the court.

A consideration of the form of the court application itself form No 23 for rule 59(1) applications show that advises the respondents of the applicant's intention to apply to the High Court for the order which he or she wants. The point I make is that the form of the application should act as a guide to the fourth and fifth respondents that applications are made in court after motions of filing documents are made. The fourth and fifth respondents in their point in limine have conflated the filing of process and the making of an application.

It will be observed that in practice and this should be confirmed as it is a neater way of doing it, the Registrar is served with the application immediately after it is filed and prior to even the filing of opposition papers. This practice assists the Registrar in that he or she is aware that a particular instrument in the Registry is under court challenge. However, from the reading of the provisions of s 79 as quoted the applicant would be compliant if he or she

gives notice to the Registrar that the application will be made within a reasonable period before the date of hearing.

The manner of giving notice is not defined in s 79. However, in this case the form 23 is worded to give notice to the all cited respondents that the applicant intends to make the application. It is not necessary to give a separate notice where the Registrar is cited as an interested party.

The preliminary objection lacked merit and it was for the above brief reasons dismissed.

CHITAPI J:.....

Thanda Law Chambers, Applicant Legal Practitioners
Jesse Mayome V Co, 4th and 5th Respondent's Legal Practitioners